

In T.591/05 the applicant had declared during the examination proceedings that he reserved the right to file a divisional application. The board found that this declaration created no obligation for the examining division to check the status of any possible divisional application or to postpone the grant of the patent. It was incumbent on the applicant to undertake the appropriate measures to ensure that any possible divisional application was filed in due time before the grant procedure was closed.

3.2. Filing date attributed to divisional application

According to Art. 76(1), second sentence, EPC, in so far as the subject matter of the divisional application does not extend beyond the content of the earlier application as filed, the divisional application shall be deemed to have been filed on the date of filing of the earlier application.

The characterising feature of a sequence of divisional applications each divided out from its predecessor is that each member of the sequence claims as filing date the date of the originating or root application in which the subject-matter divided out in sequences of divisional applications was first disclosed. The filing date of the root application is the **only filing date** which can be attributed to a divisional application, by way of the legal fiction contained in Art. 76(1), second sentence, second half sentence, EPC 1973, irrespective of whether the divisional application is a first divisional or a divisional further down in a sequence of divisionals (G.1/06).

In T.600/08 the Receiving Section had granted the request that the applicant's name in the divisional application be corrected (under R. 88 EPC 1973) on the ground that the wrong firm had been named as applicant by mistake. Before the board, the appellant (opponent) asserted that the request for correction under R. 88 EPC 1973 ought not to have been granted and that the divisional application was therefore invalid. As a result, the filing date relevant for the patent at issue was the date of receipt of the application on which it was based. The board found that there were only two alternatives for a European patent application filed as a divisional application: either it was not treated as a divisional application, in which case the grant procedure would not even start, or it was treated as a divisional application, in which case it could only be accorded the filing date of its parent application. Since the application on which the patent was based had been filed as a divisional application and then treated as such, there was no choice but to accord it the filing date of the parent application. The EPC does not provide for reviewing in opposition proceedings whether the correction of an applicant's name carried out by the Receiving Section was lawful (Art. 100 EPC 1973). See also T.196/10.

3.3. Language for filing divisional application

According to R. 36(2), first sentence, EPC, a divisional application shall be filed in the language of the proceedings of the earlier application. According to R. 36(2), second sentence, EPC, if the latter was not in an official language of the European Patent Office, the divisional application may be filed in the language of the earlier application; in such a case, a translation into the language of the proceedings for the earlier application shall be filed within two months of the filing of the divisional application.

In J 13/14 the Legal Board observed that a divisional application of an earlier application, which was filed in an EPO official language, had also to be filed in the EPO official language of the earlier application. Otherwise, it would have been filed in an inadmissible language. A correction of the language deficiency by means of a translation into the language of the proceedings for the earlier application was neither required under R 36(2), second sentence, EPC nor was it even admissible in view of the wording of that provision and of G 4/08 (OJ 2010, 572). A correction under R 139, first sentence, EPC or Art. 123(2) EPC was also not possible. The legal consequence of the non-compliance with the language requirements was that the divisional application could not be treated as a valid divisional application by analogous application of Art. 90(2) EPC.

3.4. Divisional application to be filed with EPO

Divisional applications must be filed with the EPO in Munich, The Hague or Berlin (R 36(2), third sentence, EPC). If a divisional application is sent to a national authority, the latter does not have to transmit it to the EPO. However, if it does, this application will have as date of receipt the date on which it reaches the EPO (T 196/10).

3.5. Requirement of pending earlier application

R 36 EPC (former R 25 EPC 1973) requires that a divisional application only be filed if it is in relation to any **pending** earlier patent application. In G 1/09 (OJ 2011, 336) the Enlarged Board of Appeal decided that a "pending (earlier) European patent application" in the specific context of R 25 EPC 1973 (R 36(1) EPC) was a patent application in a status in which substantive rights deriving therefrom under the EPC were (still) in existence.

An application is pending up to (but not including, see J 7/04, J 24/10) the date on which the European Patent Bulletin mentions the grant of the European patent or up to the date on which the application is refused, withdrawn or deemed withdrawn (J 28/03; for pendency in case of grant of the earlier application, see chapter II.F.3.5.3 and 3.5.4; for the situations of refusal and (deemed) withdrawal of the earlier application, see in this chapter II.F.3.5.5 to 3.5.9).

Note however that a divisional application cannot be validly filed during proceedings that have been stayed, see in this chapter II.F.3.1.2.

3.5.1 Requirement of pending earlier application sets no time limit

The wording "to any pending earlier European patent application" in R 36(1) EPC does **not set a period/time limit**, but rather sets a condition (J 29/10, referring to J 10/01; J 24/03, OJ 2004, 544; J 18/04, OJ 2006, 560; J 7/05, G 1/09, OJ 2011, 336, J 10/12). Therefore, the provision on the re-establishment of rights does not apply to the filing of a divisional application (J 24/03, see also J 21/96 and J 10/01). R 134(2) EPC, concerning the effects on periods of a general dislocation in the delivery of mail, does also not apply (J 29/10).

In J.18/04 (OJ 2006, 560) the board held that the term "pending ... patent application" in R.25(1)EPC.1973 did not set a time limit, but rather established a **substantive requirement** which had to be fulfilled at the point when a divisional application was filed. A board had no power to exempt an applicant from compliance with this substantive requirement. No substantive rights were established in a divisional application before the actual filing date of the divisional application. Substantive rights which were lost in the parent application could not be re-established in the divisional application by applying Art. 122 EPC.1973.

3.5.2 Pendency before the EPO acting as patent-granting authority according to the EPC

In J.18/09 (OJ 2011, 480) the Legal Board of Appeal decided that an international application which did not fulfil the requirements according to Art. 22 PCT for entering the European phase was not pending before the European Patent Office and therefore could not be considered a pending earlier European patent application pursuant to R. 36(1)EPC. The term "pending earlier European patent application" under R. 36(1)EPC included the requirement that the application must be pending before the European Patent Office acting as patent-granting authority according to the EPC. On the basis of the provisions of the PCT and the EPC, a **Euro-PCT application** not having entered the European phase was not a pending earlier European application within the meaning of R. 36(1)EPC. See also G 1/09, point 3.2.5 of the Reasons.

3.5.3 Pendency in case of grant of earlier application against which no appeal was filed

An application is pending up to (but not including, see J.7/04, J.24/10) the date on which the European Patent Bulletin mentions the grant of the European patent. By way of an obiter dictum, the Enlarged Board of Appeal held in G 1/09 (OJ 2011, 336) that, in the case of a decision to grant, the pending status of the European patent application normally ceased on the **day before the mention of its grant was published** since from that point in time **substantive rights** under the EPC were no longer derived from the patent application, but now derived from the granted patent. In J.8/19 the board confirmed that there is no overlap between the phases of a pending patent application and a granted European patent.

3.5.4 Pendency in case of grant of earlier application against which an appeal was filed

In J.5/08 the Legal Board had to decide whether the parent application was pending at the date of filing of the divisional application which took place after the appeal in the parent application had been filed but **before the interlocutory revision decision** by which the examining division revised the appealed decision (decision to grant referring to uncorrected text of claim 1). According to the Legal Board, a revision decision pursuant to Art. 109 EPC.1973 as such opened up the possibility that the patentability of the claimed subject matter would be completely re-assessed. In the case at issue, the grant proceedings which had been terminated by the revision decision were still pending up to that date of the revision decision. The Legal Board concluded that in general where a decision is taken on the **allowability of an appeal**, an application was pending within the

meaning of R. 25 EPC 1973 (now R. 36(1) EPC) at least up to the point in time when the decision was taken.

The Legal Board in J 5/08 further noted that there appeared to be diverging case law on the question of whether the suspensive effect of an appeal always had the consequence that the grant proceedings remained pending within the meaning of R. 25 EPC 1973 (R. 36(1) EPC) during the appeal proceedings. One line of decisions appeared to say that this was indeed the case (J 28/94, OJ 1995, 742 and J 3/04). However, a different view was taken in J 28/03, where the Legal Board had decided that the grant proceedings were to be considered as not having been pending during the appeal proceedings if the appeal was dismissed as **inadmissible**; the status of a divisional application filed while an appeal against the decision to grant a patent on the parent application was pending **depended on the outcome of that appeal**. In the more recent decision J 23/13 (albeit regarding an appeal against a refusal of the earlier application), the Legal Board referred to G 1/09 (OJ 2011, 336) and considered that the fact that the appeal was later rejected as inadmissible could not change the fact that, on the point in time when the divisional was filed, substantive rights were still in existence.

3.5.5 Pendency in case of refusal of earlier application against which no appeal was filed

In G 1/09 (OJ 2011, 336) the Enlarged Board of Appeal decided that, in the case where no appeal is filed, a European patent application which has been refused by a decision of the examining division is thereafter pending within the meaning of R. 25 EPC 1973 (R. 36(1) EPC) until the **expiry of the time limit for filing a notice of appeal**. It stated that a "pending (earlier) European patent application" in the specific context of R. 25 EPC 1973 (R. 36(1) EPC) was a patent application in a status in which substantive rights deriving therefrom under the EPC were (still) in existence. A patent application which had been refused by the examining division was thereafter still pending within the meaning of R. 25 EPC 1973 (R. 36(1) EPC) until the expiry of the period for filing an appeal and, on the day after, was no longer pending if no appeal was filed.

3.5.6 Pendency in case of refusal of earlier application against which an appeal was filed

In J 23/13 the applicant had filed the divisional application after the filing of the notice of appeal against the decision refusing the parent application, but before the **time limit for filing the statement of grounds of appeal** had expired; since no statement of grounds was filed, the board rejected the appeal against the refusal of the parent application as **inadmissible**. The board in J 23/13 observed that the divisional application had been filed while the time limit for filing the grounds of appeal was still running. The fact that the appeal was later rejected as inadmissible could not change the fact that, on the date when the divisional was filed, substantive rights were still in existence (G 1/09, OJ 2011, 336).

In J 22/13 the applicant had filed the divisional application, in contrast to the situation in J 23/13, **after expiry of the time limit for filing the statement of grounds of appeal**. The application could thus not be treated as a divisional application.

3.5.7 Pendency in case of deemed withdrawal of earlier application and request for re-establishment

In J 4/11 (OJ 2012, 516) the Legal Board held that an application which had been deemed to be withdrawn for **non-payment of a renewal fee** was not pending within the meaning of R. 25(1) EPC 1973 in the period for filing a request for re-establishment of rights under Art. 122 EPC 1973 in respect of such non-payment, or in the period after which such a request was filed in the event of such request being refused. The mere existence of the right to file a request for re-establishment of rights in respect of a deemed withdrawn application did not mean that the application was still pending while the period for filing such a request was running. Likewise, the fact that a request for re-establishment of rights was actually filed could not make the application become pending again. The board stated that the point in time when the application was deemed to be withdrawn was the point when the due time for payment of the renewal fee expired; the loss of rights occurred on the expiry of the time limit that had not been observed and, as such, was final in itself. Filing a request for re-establishment did not provisionally revive a deemed withdrawn application. As to whether the applicant enjoyed substantive rights in respect of the earlier application which were (still) subsisting when the later application was filed (see G 1/09, OJ 2011, 336), the Legal Board held that in the case at issue the substantive rights under Art. 64 EPC were no longer subsisting. As to other possible rights, the right of the inventor under Art. 60 EPC was held to be no longer subsisting when the divisional application was filed, since the right ceased to exist if and when the application was finally refused, or was withdrawn or deemed to be withdrawn.

3.5.8 Pendency in case of deemed withdrawal of earlier application and no reaction to loss of rights communication under Rule 112(1) EPC

In J 10/16 the Legal Board found that a divisional application could not be filed from the point in time at which the parent application was deemed to have been withdrawn (here: after expiry of the six-month period under R. 161(1) EPC) and if the applicant did not act on the communication noting this loss of rights under R. 112(1) EPC. Where, after receiving such a communication, the applicant did not apply for a decision under R. 112(2) EPC, the rights were lost on expiry of the original unobserved time limit (see e.g. J 4/86, OJ 1988, 119; G 1/90, OJ 1991, 275; G 4/98, OJ 2001, 131; J 19/01; J 9/02); the communication became final; and the proceedings came to an end also **on expiry of the original time limit** – unless the legal effect in question was set aside by either further processing or re-establishment of rights. Communications under R. 112(1) and decisions under R. 112(2) EPC were purely declaratory findings of a loss of rights already having arisen by operation of law (see J 1/05).

3.5.9 Pendency in case of withdrawal of earlier application

The case underlying J 20/12 concerned a parent application which had been unconditionally withdrawn but the appellant had filed a **request to correct this withdrawal**. This request was ultimately refused by the Legal Board of Appeal (in decision J 1/11). After the request for correction, the appellant had filed a divisional application, which the Receiving Section decided not to process because the parent application had